

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rita Bobe-Saleh	Team: Team # 2	CCRB Case #: 201201871	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/04/2012 5:40 PM	Location of Incident: 75th Precinct stationhouse (1000 Sutter Avenue)	18 Mo. SOL 8/4/2013	Precinct: 75
Date/Time CV Reported Fri, 02/10/2012 1:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/10/2012 1:29 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Nicosia	02777	949395	075 PCT
2. POM Anthony Sarrica	31527	927729	075 PCT
3. POM Andres Mejia	24198	942184	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Georin Duran	26108	950361	PBBN
2. POM Thomas Kennedy	26889	941049	075 PCT
3. POM Nicholas Martucci	01626	950838	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Nicosia	Force: PO Joseph Nicosia struck § 87(2)(b) against a wall.	A . Unsubstantiated
B . POM Joseph Nicosia	Discourtesy: PO Joseph Nicosia spoke discourteously to § 87(2)(b)	B . Unsubstantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

The following complaint was filed by § 87(2)(b) on February 10, 2012 via the CCRB Call Processing System (encl. 3A-B).

On February 4, 2012, at approximately 5:40 p.m., § 87(2)(b) was placed under arrest and transported to the 75th Precinct stationhouse in Brooklyn. While § 87(2)(b) was in a holding cell at the 75th Precinct stationhouse, the following resulted:

- **Allegation A-Force: PO Joseph Nicosia struck § 87(2)(b) against a wall.**
- **Allegation B-Discourtesy: PO Joseph Nicosia spoke discourteously to § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B be Unsubstantiated.**

- § 87(2)(g), § 87(4-b)

This case was reassigned to SI Rita Bobe-Saleh on April 16, 2013 for closing upon Inv. Erin Brokate's resignation from the agency.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is an § 87(2)(b) *Hispanic male with black hair and brown eyes.* § 87(2)(b)

Statements to Medical Personnel

§ 87(2)(b) was treated at § 87(2)(b) on § 87(2)(b). He informed medical personnel that he had been assaulted by police officers after he was arrested at the 75th Precinct Stationhouse (encl. 3C-D).

Arrest Photo

§ 87(2)(b)'s arrest photo, taken on February 4, 2012, does not show any visible injury on § 87(2)(b) (encl.3L).

Photos

§ 87(2)(b) provided the CCRB with photographs of his injuries during his interview on March 27, 2012. These photos show that § 87(2)(b) had a bruise under his left eye and a small laceration on his right temple. These photographs are not dated and § 87(2)(b) could not provide the exact date for when the photos were taken (encl. 3I-J).

CCRB Testimony

§ 87(2)(b) provided a statement at the CCRB on March 27, 2012 (encl. 3E-K). On February 4, 2012, at approximately 5:39 p.m., § 87(2)(b) was at his home when he received a phone call from his friend § 87(2)(b). § 87(2)(b) informed § 87(2)(b) that he had been driving to his house when his vehicle had been stopped by officers in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn for a loud exhaust. § 87(2)(b) decided to walk to the scene and arrived a few minutes after receiving the phone call. § 87(2)(b) was sober and was not under the influence of alcohol or drugs.

§ 87(2)(b) who drives a 1995 Silver Acura Integra, was standing outside of his vehicle. He was speaking to three uniformed officers who were traveling in a marked patrol car. § 87(2)(b) was unable to provide any names or badge numbers for these officers and initially indicated that he did not get a good look at the officers. PO1, was a black female, dark complexion, average build, in her mid-twenties, and 5'8" tall. PO2, was a clean shaven, black male in his twenties who had a very short haircut and an average build and identified by the CCRB as Lt. Andre Blake. PO3, was a clean shaven, white or Hispanic male in his twenties with a medium/stocky build and dark hair cut in a low haircut, identified by the investigation as PO Georin Duran.

§ 87(2)(b) opened the car door to § 87(2)(b) vehicle in order to get in the front passenger seat of § 87(2)(b) car but he was prevented from doing so by the officers. § 87(2)(b) indicated that his arrest report notes otherwise, and that at no time did he enter the vehicle. § 87(2)(b) was asked what he was doing and he told them that § 87(2)(b) was his friend and that he was giving him a ride. The officers told § 87(2)(b) that he could not get into the car. The officers asked why he was trying to "get smart?" The officers issued § 87(2)(b) two summonses: loud exhaust and no registration. § 87(2)(b) argued with the officers because he had found his registration after they issued the summonses, and they would not accept it. § 87(2)(b) was told to go to court with regards. § 87(2)(b) told the officers he would beat the summonses in court and he got arrested thereafter. § 87(2)(b) became upset and began yelling at cursing at the officers. He believed that what they were doing was unfair. After a few minutes, one of the officers placed § 87(2)(b) and § 87(2)(b) under arrest. § 87(2)(b) indicated that he was initially charged with § 87(2)(b). However, when he appeared before the judge, his charge had been changed to § 87(2)(b). § 87(2)(b) was transported to the 75th Precinct stationhouse by Lt. Blake and his partners. § 87(2)(b) was taken to the 75th Precinct stationhouse by PO4 and PO5, two white or Hispanic male officers with heavy set builds that appeared to be in their thirties. The investigation identified these officers as PO Andres Mejia and Anthony Sarrica.

Once § 87(2)(b) arrived at the 75th Precinct stationhouse, PO Mejia and PO Sarrica escorted § 87(2)(b) inside. The officers passed § 87(2)(b) to PO Duran, who was standing inside the lobby of the stationhouse. § 87(2)(b) was also standing inside. They were waiting to get up to the desk. There was someone being processed at the desk ahead of them. While they were waiting, § 87(2)(b) was still very upset. He was not yelling at any particular officer but he was loudly disputing his arrest and repeatedly stated, "This is bullshit." While he was standing there, PO6, a 5'10" to 6'0" tall, white male, in his twenties, with sandy brown hair cut short, in

uniform, identified by the CCRB as PO Joseph Nicosia and PO7, a 5'5" tall, white/Hispanic male, with black hair, a stocky build, clean shaven, also in uniform, identified by the investigation as PO Anthony Sarrica approached § 87(2)(b) while he was standing with PO Duran. PO Nicosia came up to § 87(2)(b) and placed his arm around his shoulder. He told PO Duran, "This guy is gonna be my new best friend." § 87(2)(b) was insulted by PO Nicosia's demeanor and told him that he would not be his friend. PO Nicosia then asked PO8, a black female officer with a dark complexion, yellowish/orange dyed dreadlocks tied in a bun and potentially had glasses, possibly wearing a white shirt, who was sitting behind the desk, identified by the investigation as Lt. Danielle Raiadamico, if he could bring § 87(2)(b) to the cells that were located in the back of the precinct.

Lt. Raiadamico consented to this and PO Nicosia and PO Sarrica proceeded to walk § 87(2)(b) to the holding cells that were located in the rear of the precinct. As they walked into the cells, they passed by a small desk where there was a cell attendant and they stopped. PO Nicosia began searching § 87(2)(b). He removed his glasses and emptied his pockets (wallet, keys, phones) and passed all the items to PO Sarrica, who was standing right behind him. PO Nicosia and PO Sarrica then proceeded to walk § 87(2)(b) back to the holding cells. They passed the first cell which was empty and he was placed in the second cell. § 87(2)(b) did not know if anyone was in the third cell.

§ 87(2)(b) was placed in the second holding cell and PO Nicosia and PO Sarrica walked in with § 87(2)(b). § 87(2)(b) was still handcuffed at this time. PO Nicosia took § 87(2)(b) and forcefully slammed him against a wall that was located in the corner of the cell. He then backed up § 87(2)(b) and slammed him against the wall. While he was doing this, PO Nicosia asked § 87(2)(b) "Are you done being a wiseass?" § 87(2)(b)'s left side of his face hit the wall and his right shoulder hit against the adjoining wall. This caused § 87(2)(b) pain on his shoulder and to his head.

After PO Nicosia hit § 87(2)(b) against the wall for the second time, § 87(2)(b) slumped down onto a bench inside the cell. He was very dizzy. In order to stop PO Nicosia from hitting him again, § 87(2)(b) told him, "Sorry officer." PO Nicosia and PO Sarrica then left the holding cell. They returned about 10 to 20 minutes later and stripped § 87(2)(b) of his belt, shoelaces and the string on his hoodie.

§ 87(2)(b) was later transported to Brooklyn Central Booking late in the evening by other officers. Once he was released, § 87(2)(b) went to § 87(2)(b) where he received treatment for facial contusions.

Attempts to contact civilians

Attempts were made to schedule § 87(2)(b) for a photo array. On January 7, 2013, § 87(2)(b) scheduled a photo array at the CCRB on January 15, 2013. On January 15, 2013, § 87(2)(b) called the CCRB and rescheduled the appointment for January 22, 2013. § 87(2)(b) missed his appointment at the CCRB, without calling beforehand to cancel or reschedule. On January 24, 2013, § 87(2)(b) scheduled another appointment at the CCRB on February 5, 2013. On February 5, 2013, § 87(2)(b) missed his second appointment at the CCRB. A check of the NYC Department of Correction database revealed that he was not incarcerated during this period.

No attempts were made to contact § 87(2)(b) since he was in a separate cell next to § 87(2)(b) and could not see him. Additionally, § 87(2)(b) indicated that he did not witness the incident.

NYPD Statements:

Witness Officer: PO GEORIN DURAN

- PO Duran is a § 87(2)(b), Hispanic male with brown hair and brown eyes.
- On February 4, 2012, PO Duran worked from 1:00 p.m. until 2:13 a.m. the following day. He was in uniform, assigned as the lieutenant's recorder and working with Lt. Andre Blake and PO Joseph Nicosia. They were assigned to an unmarked vehicle.

Memo Book

At 5:39 p.m., § 87(2)(b) and § 87(2)(b) were placed under arrest at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn for § 87(2)(b) § 87(2)(b), § 87(2)(b), Brooklyn NY 11212, NY Class D License number § 87(2)(b) § 87(2)(b) DOB § 87(2)(b) Brooklyn NY 11208. NY Class D License § 87(2)(b) At 5:45 p.m., PO Duran arrived at the 75th Precinct stationhouse. At 7:50 p.m. releasing one blackberry, one iPhone, 2 cell phone cases, one set of keys with 9 keys in it, 1 white belt, one beanie, 1 baseball cap, 1 brown wallet with three Metro cards, 1 Blistex crème, 4 shoelaces to § 87(2)(b) Brooklyn NY 11203 § 87(2)(b) them, At 7:18 p.m. and 7:19 p.m., complaint reports were generated for § 87(2)(b) and § 87(2)(b) At 10:39 p.m., PO Duran began the arrest paperwork, § 87(2)(b) was generated for § 87(2)(b) and § 87(2)(b) was generated for § 87(2)(b). At 1:50 a.m., § 87(2)(b) keys were released to § 87(2)(b) of § 87(2)(b) (encl. 4G-J).

Complaint Report and Online Booking Sheet report

PO Duran completed the complaint and arrest report for § 87(2)(b) He noted the following narrative in the complaint report: "§ 87(2)(a) 160.50

(encl.4C-D). PO Duran noted the following in the narrative for the arrest report: "§ 87(2)(a) 160.50

(encl. 4D-F).

CCRB Statement

PO Duran was interviewed at the CCRB on June 20, 2012 (encl. 4K-M). On February 4, 2012, PO Duran was on patrol with Lt. Blake and PO Nicosia. PO Duran had been out of the academy for one month and was new to the precinct. PO Duran was sitting in the rear of the patrol car. At approximately 5:39 p.m., the officers effected a car stop of § 87(2)(b) in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, for a loud muffler. During the stop, an individual, later identified as § 87(2)(b) arrived on scene and sat in § 87(2)(b) vehicle. § 87(2)(b) was § 87(2)(b) friend and the officers told him to exit the vehicle. § 87(2)(b) refused to exit. § 87(2)(b) was placed under arrest for § 87(2)(b) § 87(2)(b) was yelling, screaming and cursing prior to being handcuffed but became calm and quiet once handcuffed. § 87(2)(b) who was already under arrest for the same

infraction, was placed in Lt. Blake's vehicle, with PO Nicosia, § 87(2)(b) and PO Duran got into a passing patrol car, with domestic violence officers, identified by the investigation as PO Anthony Sarrica and PO Andres Mejia. PO Duran and the officers drove in the same marked vehicle to the 75th Precinct stationhouse. While on the way to the precinct stationhouse, § 87(2)(b) was quiet and calm.

Once they arrived at the 75th Precinct stationhouse, PO Nicosia escorted § 87(2)(b) inside along with PO Sarrica and PO Mejia, the domestic violence officers. § 87(2)(b) was also escorted by PO Nicosia. They went and stood on line for the desk sergeant. PO Duran stated that while they were waiting, PO Nicosia was physically holding onto § 87(2)(b). PO Sarrica and PO Mejia stood nearby. PO Duran did not know if PO Mejia and PO Sarrica ever held onto § 87(2)(b) physically. PO Duran was writing down § 87(2)(b)'s and § 87(2)(b)'s pedigree information in the command log so he did not see if any other officer approached § 87(2)(b) while he was doing this. PO Duran did not hear § 87(2)(b) being loud or yelling while standing in front of the desk. PO Duran stated that there was a lot of arrests that day so while PO Nicosia placed § 87(2)(b) in the holding cells, PO Duran took care of the arrest paperwork. § 87(2)(b) was calm while at the 75th Precinct Stationhouse.

PO Duran did not escort § 87(2)(b) back to the holding cells but he did see PO Nicosia, PO Mejia and PO Sarrica escort § 87(2)(b) back to the holding cell area. However, PO Duran did not actually see § 87(2)(b) be placed inside the cell. He later walked back to § 87(2)(b)'s holding cell to ask § 87(2)(b) questions regarding his pedigree but § 87(2)(b) did not say anything to PO Duran about being involved in an altercation with officers. § 87(2)(b) was also in the cells at this time. PO Duran did not see any bruising or abrasions on § 87(2)(b)'s face. PO Duran did not witness § 87(2)(b) get struck or placed against a wall by any officer and he did not hear any officer call § 87(2)(b) "Wiseass." PO Duran believed that § 87(2)(b) was inside of the holding cell with § 87(2)(b).

A day or several days later, § 87(2)(b) and § 87(2)(b) mother, arrived at the 75th Precinct stationhouse in order to retrieve § 87(2)(b)'s vehicle, which had been impounded. § 87(2)(b) mother was upset and PO Duran tried to calm her down. PO Duran did not see any marks or bruising on § 87(2)(b)'s face and stated that he saw § 87(2)(b) for the second time within two days of his arrest at the most. § 87(2)(b) did not make any reference to the assault but § 87(2)(b) did ask PO Duran where his partner was and stated to PO Duran that he was, "Looking for his partner."

PO Duran stated that § 87(2)(b)'s father is § 87(2)(b) and that PO Duran sees § 87(2)(b)'s father every day. § 87(2)(b) PO Duran spoke to § 87(2)(b)'s father a week after this incident. § 87(2)(b)'s father told PO Duran that § 87(2)(b) informed him that § 87(2)(b) was struck by an officer and punched him in the eye while in the holding cell at the 75th Precinct Stationhouse. PO Duran was shocked because he was not aware of this.

Subject Officer: PO JOSEPH NICOSIA

- PO Nicosia is a § 87(2)(b) white male, § 87(2)(b) with brown hair and blue eyes.
- On February 4, 2012, PO Nicosia worked from 1:00 p.m. until 9:35 p.m. He was working as a lieutenant's operator and was working with Lt. Andre Blake and PO Georin Duran. He was in uniform and assigned to a marked vehicle.

Memo Book

At 5:42 p.m., there was a vehicle stop conducted at § 87(2)(b) and § 87(2)(b) in Brooklyn for an expired registration and a loud exhaust. The man in the car repeatedly exited his vehicle and told to get back. Man was told to stay in his vehicle three times. After a summons was issued, male got out of the car and walked toward the RMP in a fighting manner. There was a friend on scene that kept trying to enter the vehicle. The man was also cursing and yelling in the middle of the street. One of the individuals was placed under arrested by PO Duran for § 87(2)(b) (encl. 4O-P).

CCRB Statement

PO Nicosia provided a statement at the CCRB on August 15, 2012 (encl. 4Q-R). On February 4th, 2012, PO Nicosia was on patrol when, at approximately 5:40 pm, he conducted a car stop near § 87(2)(b) and § 87(2)(b) in Brooklyn. The car stop was initially made because of a loud exhaust. PO Nicosia was interacting with the driver, § 87(2)(b). § 87(2)(b) was not acting compliantly. For the duration of the car stop, § 87(2)(b) frequently exited his vehicle and was yelling and cursing. Ultimately, PO Nicosia was instructed to arrest § 87(2)(b) for disorderly conduct by Lt. Blake. § 87(2)(b) demeanor caused people to look out of there windows at what was happening between the officers and § 87(2)(b).

PO Nicosia later learned that § 87(2)(b) was § 87(2)(b) friend or cousin. PO Nicosia stated that PO Duran took the initiative to deal with § 87(2)(b) and that § 87(2)(b) kept reaching into § 87(2)(b) vehicle to remove items from the vehicle but PO Nicosia did not witness this.

While § 87(2)(b) was being placed under arrest, § 87(2)(b) arrived on scene and sat in the vehicle. PO Nicosia did not interact with § 87(2)(b) much during the car stop. § 87(2)(b) was placed under arrest by PO Duran for § 87(2)(b). PO Anthony Sarrica transported § 87(2)(b) to the stationhouse. PO Nicosia transported § 87(2)(b) to the stationhouse.

When PO Nicosia arrived at the precinct stationhouse, § 87(2)(b) was standing by the front desk, yelling and cursing. PO Nicosia did not interact with § 87(2)(b) at the precinct stationhouse. From there, PO Sarrica escorted § 87(2)(b) to a holding cell. PO Nicosia escorted § 87(2)(b) to a holding cell. § 87(2)(b) was already inside a holding cell at the time PO Nicosia brought § 87(2)(b) to the holding cells. PO Nicosia did not interact with § 87(2)(b) at this time.

PO Nicosia did not witness any officer push or hit § 87(2)(b) against the wall of a holding cell. PO Nicosia did not witness any profanity directed toward § 87(2)(b) by an officer.

Subject Officer: PO ANTHONY SARRICA

- PO Sarrica is a § 87(2)(b), Hispanic male, with brown hair and brown eyes. PO Sarrica provided a statement at the CCRB on August 15th, 2012.
- On February 4, 2012, PO Sarrica worked from 3:00 p.m. until 11:35 p.m. He was in uniform, assigned to domestic violence and working with PO Andres Mejia. They were assigned to a marked vehicle, RMP 3820.

Memo Book

PO Sarrica noted the following entry on his fly sheet: At 5:37 p.m., one male was transported for FTU and at 5:45 p.m. the male was out (encl. 4T-V).

CCRB Statement

PO Sarrica provided a statement at the CCRB on August 15th, 2012 (encl. 4W-X).

On February 4, 2012, at approximately 5:45 p.m., PO Sarrica and his partner, PO Mejia, were on patrol in a marked vehicle westbound on § 87(2)(b) and § 87(2)(b) in Brooklyn. PO Sarrica noticed officers across the street conducting what appeared to be a car stop. PO Sarrica stopped to offer assistance to the officers conducting the car stop. The officers conducting the car stop asked PO Sarrica if his patrol car was equipped with a computer; it was. However, the computer in PO Sarrica's car would not work so the information of the driver could not be checked. PO Sarrica was initially going to drive back the other patrol car with one of the prisoners to the stationhouse. However, the patrol car failed to start and it was left there with some unidentified officers assigned to a foot post.

PO Sarrica transported one of the prisoners back to the precinct stationhouse. When shown a photograph of § 87(2)(b) PO Sarrica did not recognize § 87(2)(b) but indicated that it they may have transported him.

PO Sarrica did not recall interacting with § 87(2)(b) while he was being transported. He did not recall transporting another officer in the vehicle but indicated that the arresting officer, identified by the investigation as PO Duran, was new and he did not know him. PO Sarrica did not recall if § 87(2)(b) was upset or yelling while being transported to the 75th Precinct Stationhouse.

At the stationhouse, PO Sarrica escorted § 87(2)(b) to the front desk where the arresting officer was filling out paperwork. The officers who were transporting the driver of the stopped vehicle entered the stationhouse at this point. PO Sarrica does not recall who transported neither § 87(2)(b) nor the driver of the vehicle back to the holding cells.

PO Sarrica and PO Mejia brought § 87(2)(b) to the desk and they both stood behind § 87(2)(b) while PO Duran filled out the pedigree sheet for § 87(2)(b). PO Sarrica did not recall if any additional officers approached and assisted PO Sarrica and later indicated that PO Nicosia assisted him in safeguarding § 87(2)(b) and not PO Mejia.

PO Duran brought § 87(2)(b) to the holding cell area. PO Sarrica did not recall seeing PO Nicosia assist him in doing this. PO Sarrica did not assist with bringing § 87(2)(b) back to the holding cell area.

Subject Officer: PO ANDRES MEJIA

- PO Mejia is a § 87(2)(b), Hispanic male with brown hair and brown eyes.
- On February 4, 2012, PO Mejia worked from 3:00 p.m. until 11:35 p.m. He was in uniform, assigned to domestic violence and working with PO Anthony Sarrica.

Memo Book

PO Mejia did not have any memo book entries regarding this incident (encl. 4Z-5B).

CCRB Statement

PO Mejia provided a statement at the CCRB on July 6, 2012 (encl. 5C-D).

PO Mejia corroborated PO Sarrica's testimony that they transported a prisoner back to the 75th Precinct Stationhouse. However, he had no recollection of anything beyond this fact of the incident involving § 87(2)(b). PO Mejia could not account for the officers' actions at the precinct stationhouse and noted that he would not have escorted the prisoner to the holding cell because that was tasked to the arresting officer. He did not witness any officer slam a prisoner against a wall or call the prisoner a "wiseass."

Witness Officer: PO THOMAS KENNEDY

- PO Kennedy is a § 87(2)(b), white male with brown hair and brown eyes.
- On February 4, 2012, PO Kennedy worked from 3:00 p.m. until 11:35 p.m. He was in uniform, working as the cell attendant and did not have a partner on this day.

Memo Book

PO Kennedy did not have any memo book entries regarding this incident (encl. 5F-GG).

CCRB Statement

PO Kennedy provided a statement at the CCRB on June 8, 2012 (encl. 5H-I). PO Kennedy was not familiar with this incident. Details were given to him regarding this incident which did assist his recollection of the events. PO Kennedy was the cell attendant and remained at his desk. PO Kennedy stated that he did not know PO Georin Duran and did not recognize a photo of § 87(2)(b). § 87(2)(b)

PO Kennedy did not recall interacting with § 87(2)(b) or witness any officer use physical force or speak discourteously as alleged to any prisoner he was guarding at that time. From where he sits in the cell area, PO Kennedy cannot see inside any of the cells.

Additional Officers

PO Nicholas Martucci, a § 87(2)(b), Hispanic male with brown hair and brown eyes was interviewed at the CCRB on April 4, 2013. The investigation established that he was not involved in this incident and the summary of his statement is enclosed (encl. 5J-O).

Lt. Blake was identified as being present during the arrest but he was not present when § 87(2)(b) was escorted to the prisoner holding cell roster where the allegations took place. Lt. Raiadamico was identified through documentation as being assigned to the desk, however, there is no documentation noting her involvement in the actions that occurred in the prisoner holding cell. § 87(2)(g)

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Prisoner Holding Pen Roster (PHPR)

According to the PHPR for February 4, 2012, § 87(2)(b) was placed into the holding cell area at the 75th Precinct stationhouse at 6:00 p.m., cell #10. There were no other prisoners in the same cell and § 87(2)(b) was placed next to him in cell #9. PO Kennedy was guarding the cells (encl. 7B).

Command Log

According to the tour 3 command log for February 4, 2012, at 5:40 p.m., § 87(2)(b) was brought to the 75th Precinct stationhouse and his physical condition was listed as apparently normal (encl. 7C).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 3, 2013, 12 months after the filing deadline, with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl.2D).

Subject Officer CCRB History

- PO Nicosia has been a member of service for 2 years and has no substantiated CCRB allegations (encl. 2A).
- PO Sarrica has been a member of service for 12 years and has no substantiated CCRB allegations (encl. 2B).
- PO Mejia has been a member of service for 6 years and has no substantiated CCRB allegations (encl. 2C).

Conclusion

Identification of Subject Officer

§ 87(2)(b) described the subject officer he interacted with at the precinct stationhouse as 5'10" to 6'0" tall, white male, in his twenties, with sandy brown short hair and in uniform. PO Sarrica and PO Duran confirmed that PO Nicosia, a white male, with sandy brown hair and in his mid-twenties guarded § 87(2)(b) while at the desk. PO Duran observed PO Nicosia escort § 87(2)(b) along with PO Sarrica and PO Mejia to the prisoner holding cell. Additionally,

PO Duran noted that § 87(2)(b) appeared at the 75th Precinct Stationhouse several days after the incident and requested to speak to his partner. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO Joseph Nicosia struck § 87(2)(b) against a wall.

Allegation B – Discourtesy: PO Joseph Nicosia spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after being escorted into a holding cell at the 75th Precinct stationhouse, PO Nicosia forcefully and intentionally slammed § 87(2)(b) against a wall that was located in the corner of the cell. PO Nicosia then backed up § 87(2)(b) and slammed him against the wall for a second time. While he was doing this, PO Nicosia asked § 87(2)(b) “Are you done being a wiseass?” PO Nicosia denied interacting with § 87(2)(b) at any time. As discussed in the subject officer identification section, the investigation determined that PO Nicosia escorted § 87(2)(b) to the prisoner holding cell. However, all the officers interviewed denied aiding PO Nicosia in escorting § 87(2)(b) to the cells or witnessing any of the alleged aforementioned actions.

§ 87(2)(b)'s arrest photo did not show any visible injuries to his face. However, § 87(2)(b) received medical treatment three days after his arrest and informed medical personnel that he had been assaulted by police officers. § 87(2)(b) was diagnosed with § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegations A and B be Unsubstantiated.**

§ 87(2)(g), § 87(4-b)

Team: 2

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date